



Republic of the Philippines  
Province of Camarines Norte  
**MUNICIPALITY OF DAET**



**OFFICE OF THE SANGGUNIANG BAYAN**

**EXCERPTS FROM THE MINUTES OF THE 11<sup>th</sup> REGULAR SESSION OF THE HONORABLE SANGGUNIANG BAYAN OF DAET, PROVINCE OF CAMARINES NORTE HELD AT THE SESSION HALL (LEGISLATIVE HALL) ON THE 15<sup>th</sup> DAY OF MARCH, 2021 AT 9:00 A.M.**

**PRESENT:**

**HON. ROSA MIA L. KING**  
Municipal Vice-Mayor/ Presiding Officer

**MUNICIPAL COUNCILORS**

|                                    |                                   |
|------------------------------------|-----------------------------------|
| HON. MA. ELIZA H. LLOVIT           | HON. MARLON T. BANDELARIA         |
| HON. TOMASITO SANTIAGO C. TURINGAN | HON. ROSSANO C. VALENCIA          |
| HON. APOLONIO B. PANONG            | HON. NESTOR F. DALIDA             |
| HON. FELIX C. ABAÑO                | HON. PEDRO S. MUSA - LNB          |
| COUN. WILLIAM CARLO R. AVILA       | HON. JUDY ROSE T. GALLARDO - SKMF |

**ABSENT:**

NONE

**Resolution No. 096-2021**

**RESOLUTION ADOPTING AN ORDINANCE AUTHORIZING THE RECLASSIFICATION FROM AGRICULTURAL TO RESIDENTIAL LAND USE OF THE MORE OR LESS 2.5890 HECTARE LAND UNDER OCT NO. 2018000035 REGISTERED IN THE NAME OF CHRISTOPHER MICHAEL Y. GUTIERREZ LOCATED AT PUROK 1, BARANGAY DOGONGAN, DAET, CAMARINES NORTE AND FAVORABLY ENDORSING THE SAME TO THE DEPARTMENT OF HUMAN SETTLEMENT AND URBAN DEVELOPMENT (DHSUD), REGIONAL OFFICE NO. 5 FOR A SOCIALIZED HOUSING PROJECT UNDER THE COMMUNITY MORTGAGE PROGRAM**

**WHEREAS**, pursuant to Section 20 of the Local Government Code of 1991, the municipality through an ordinance passed by the sanggunian after conducting public hearings for the purpose, authorize the reclassification of land within its territorial jurisdiction;

**WHEREAS**, the Sangguniang Bayan of Daet received a letter from Mr. Christopher Michael Y. Gutierrez requesting for reclassification of land at Purok 1, Barangay Dogongan from agricultural zone (cocoland) to residential land use and endorsing the same to DHSUD the Socialized Housing Project under Community Mortgage Program;

**WHEREAS**, Mr. Gutierrez appeared before the honorable body during the en banc meeting held last February 22, 2021 and discussed the reclassification for purposes of Socialized Housing Project;

**WHEREAS**, submitted to this office are the following documents:

1. Certification from Barangay Dogongan interposing no objection to the to the reclassification of the land;

2. Certification from MPDO stating that the project is outside the 20 meter road-right-of-way clearance in the national road reckoned 10.00 meters as per defined by the Approved Parcellary Survey of the DPWH and not needed for any future public use or public service;
3. Certification from MPDO that the subject land area does not exceed the limit for required residential area for reclassification/conversion of the municipality for the plan period CY 2020-2025;
4. DAR Certification that the land is not covered by the Comprehensive Agrarian Reform Program;
5. NIA Certification of non-irrigated land;
6. PCA Certification of non-coconut productivity.

**WHEREAS**, the public hearing was conducted in the barangay and no objection was registered;

**WHEREAS**, the proposed Comprehensive Land Use Plan of Daet is ongoing and identified the subject land for residential purposes to address the high demand for socialized housing project in the municipality;

**WHEREAS**, finding the application essential and reclassification of the land use have substantially greater economic value for residential purposes;

**NOW THEREFORE**, after due deliberation, on motion of Councilor Felix C. Abañon during first reading, and on motion of Councilor Rossano C. Valencia during second and final reading, seconded by Councilors Pedro S. Musa, Apolonio B. Panong, Tomasito Santiago C. Turingan, Nestor F. Dalida, William Carlo R. Avila and Judy Rose T. Gallardo;

**BE IT RESOLVED**, as it is hereby resolved, to adopt:

**MUNICIPAL ORDINANCE NO. 402-2021**

**AN ORDINANCE AUTHORIZING THE RECLASSIFICATION FROM AGRICULTURAL TO RESIDENTIAL LAND USE OF THE MORE OR LESS 2.5890 HECTARE LAND UNDER OCT NO. 2018000035 REGISTERED IN THE NAME OF CHRISTOPHER MICHAEL Y. GUTIERREZ LOCATED AT PUROK 1, BARANGAY DOGONGAN, DAET, CAMARINES NORTE AND FAVORABLY ENDORSING THE SAME TO THE DEPARTMENT OF HUMAN SETTLEMENT AND URBAN DEVELOPMENT (DHSUD), REGIONAL OFFICE NO. 5 FOR A SOCIALIZED HOUSING PROJECT UNDER THE COMMUNITY MORTGAGE PROGRAM**

**BE IT ORDAINED** by the Honorable Sangguniang Bayan of Daet, that:

**SECTION 1. AUTHORITY.** It is hereby authorized to reclassify the 2.5890 hectare land under TCT No. 2018000035 registered in the name of Christopher Michael Y. Gutierrez located at Purok 1, Barangay Dogongan, Daet, Camarines Norte from agricultural land use to residential land use.

**SECTION 2. PURPOSE.** The subject land shall be exclusively used for socialized housing project under the Community Mortgage Program subject to compliance with the standards set by the Department of Human Settlement and Urban Development (DHSUD) and other existing laws.



**SECTION 3. REPEALING CLAUSE.** All ordinances or any part thereof which are inconsistent with any provision or provisions of this ordinance are hereby repealed or modified accordingly.

**SECTION 4. EFFECTIVITY.** This ordinance shall take effect upon its approval and compliance to rules of posting and publication.

**ENACTED.**

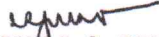
**RESOLVED FURTHER,** to furnish copies hereof, Honorable Benito S. Ochoa, Municipal Mayor; Arch. Emily C. Palomiano, MPDC; Engr. Carmichael S. De Alva, Building Official Designate; Mr. Christopher Michael Y. Gutierrez, Purok 1, Barangay Dogongan, Daet, Camarines Norte; the Honorable Sangguniang Panlalawigan of Camarines Norte; the DHSUD, Regional Office No. V, Legazpi City, and all others concerned for their information and appropriate action.

**CARRIED UNANIMOUSLY.**

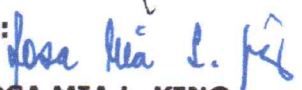
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**I HEREBY CERTIFY** to the correctness of the foregoing.

**FOR THE SECRETARY:**

  
**ERLINDA S. PUSO**  
Administrative Officer V

  
**COUN. ROSSANO C. VALENCIA**  
Proponent

**ATTESTED:**   
**ROSA MIA L. KING**  
Municipal Vice-Mayor/ Presiding Officer

**APPROVED**

  
**BENITO S. OCHOA**  
Municipal Mayor

Date: MAR 24 2021